

25STCV18759 25STCV18759

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-07-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C514%2C07%2F20%2F2026

Source SHA-256: de7f8a7a958381af6c5cda86f5b65a87a4a4a51c3ca9f48762d74a9246bf492b

Case Number: 25STCV18759 Hearing Date: July 20, 2026 Dept: 514

Abair v. Marcus

25STCV18759

Defendant's Demurrer to First Amended Complaint

Defendant's Motion to Strike

Tentative Ruling

Under Code of Civil Procedure section 128.7, subdivision

(a), all pleadings, motions, and similar documents filed with the Court must be signed by an attorney (if the party filing the document is represented by counsel) or by the party herself (if the party is not represented). Each document must also state the address and telephone number (if any) of the person signing the document. "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party."

Plaintiff Ryan Abair filed a First Amended

Complaint (the "FAC") with the Court on October 6, 2025. The FAC remains the operative pleading. It is not signed.

Accordingly, the Court sets an Order to Show

Cause re: Why the First Amended Complaint Filed on October 6, 2025, Should not be Stricken on the Ground That it is Unsigned.

The hearing on the Order to Show Cause is set for August 17, 2026, at 8:30 am, in Department 514 of the Stanley Mosk Courthouse.

Any response to the Order to Show Cause must

be in writing and must be filed by no later than August 10, 2026.

The Court GRANTS Plaintiff leave to file, by no later than August 10, 2026, a corrected First Amended Complaint that is signed but otherwise makes no changes from the FAC filed on October 6, 2025. (If Plaintiff wishes to amend the pleading, she must file a motion seeking leave to do so.)

The hearings on the demurrer, motion to strike, and the two Orders to Show Cause set for hearing on July 20 are continued to August 17, 2026, at 8:30 am, on the Court's own motion.

The Case Management Conference set for July 20 is continued to August 17, 2026, at 8:30 am, on the Court's own motion.

Counsel for the defendant is ordered to give notice and to file proof of service of notice with the Court by no later than July 24, 2026.